GEORGINA JENAPU MAKOVA
and
KUDZAISHE PAIDAMOYO MAKOVA
and
FARAI NYENGERAI MAKOVA
and
ADRIANATAFADZWA MAKOVA
and
RUVIMBO MAKOVA
and
RUMBIDZAI RUNYARARO ADELAIDE MAKOVA
versus
VONGAI LEAH MUFARA N.O
(IN HER CAPACITY AS EXECUTOR TESTAMENTARY OF
ESTATE LATE CLAUDIUS MAKOVA
and
MASTER OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
**TSANGA J**
HARARE;24 February & 7 May 2026

***Opposed application***

*L Matapura*, for Applicants
*TM Kanengoni*, for 1st Respondent
No appearance for 2nd Respondent
(cited in official capacity)

TSANGA J

**Introduction**

This is an application for a declaratory order in which the applicants seek to have the last will and testament of the late Claudius William Makova, declared null and void. It is premised on the contention that the deceased, at the time of executing the will, had purported to enter into a second marriage whilst still bound by a subsisting monogamous marriage. It is argued that such subsequent union was invalid, and consequently, any benefit conferred upon the purported second wife in the will ought to be set aside.

The first applicant is Georgina Jepuna Makova, who is the surviving spouse of the Late Claudius William Makova. The second to fifth applicants are Kudzaishe Paidamoyo Makova, Farai Nyengeterai Makova, Adriana Tafadzwa Ruvimbo Makova and Rumbidzai Runyararo Adelaide Makova, and are the biological children born to the marriage of the late Claudius William Makova and Georgina Jenapu Makova.

The first respondent is Vongai Leah Mufara in her capacity as the executrix dative of the estate of the late Claudius William Makova. The second respondent is the Master of the High Court.

**Background Facts**

On the 2first of November 1983, the late Claudius William Makova and Georgina Jenapu solemnised a civil monogamous marriage in terms of the provisions of the then Marriages Act (Chapter 37). The marriage subsisted until the death of the late Claudius William Makova on 6 July 2025.

Sometime in 2017, the late had entered into an unregistered customary marriage with Vongai Leah Mufaro. One child was born to them in 2013 although the deceased was also later in custody of another of his children born in 2015 whose mother had since died.

Claudius William Makova made a Last Will and Testament in May 2025, in terms of which he identified Vongai Leah Mufara as his second wife, appointed her as an administrator over his estate and also granted her rights together with the rest of the legal beneficiaries of his Estate to inherit certain assets, articles and benefits from the Estate. The will specifically referred to both Georgina and Vongai Leah as his wives. Following his death, this Will was registered with the Master of the High Court. The Master, in August 2025, accepted this last Will and Testament after an edict meeting.

It is against this backdrop that the applicants seek the customary marriage to be declared unlawful on the basis of an existing civil marriage. They also want the last will and testament to be declared unlawful on the basis of being against public policy in that it effectively enforces a bigamous relationship. The appointment of Vongai Leah Mufara as a legal beneficiary of the Estate of the late in terms of the will is also sought to be declared invalid. The bequest of an undivided state land by the late Claudius William Makova in his Last Will and Testament is also said to be in violation of the provisions of the Land Commission Act and the Regional Town and Country Planning Act and therefore invalid and

is sought to be set aside. What the applicants ultimately seek is for the late to be declared to have died intestate. Costs are sought on a higher scale.

**Issues for Determination**

The issues which the applicants want determined are as follows:

a) The legal validity of the unregistered customary marriage between the late Claudius William Makova And Vongai Leah Mufara.

b) The consequences of the bigamous relationship to the Last Will and Testament.

c) The lawfulness of a will which seeks to create rights and enforce a bigamous relationship.

d) The legality of a Last Will and Testament which seeks to protect and enforce an adulterous relationship.

e) The legal effect of appointment of Vongai Leah Mafara as an administrator of the will.

f) The propriety of the Master's decision in appointing Vongai Leah Mafara as the Executrix of the Estate.

g) Whether Vongai Leah Mafara can be declared a lawful beneficiary of the Estate without violation of the provisions of Section 104 of the Criminal Law Codification And Reform Act and without violating the law relating to adultery in Zimbabwe.

Crystallised, the central issue for determination is simply whether the invalidity of the deceased's purported second marriage has the effect of rendering his will, or the provisions therein benefiting the respondent, null and void.

**Preliminary points raised**

Two preliminary points were raised by the first respondent at the hearing. The applicants are said to have largely averred a violation of the Criminal Law and Codification Reform Act It is submitted that effectively this court is being approached as a criminal court on bigamy and yet the deceased had never been charged with bigamy in his life time. The second preliminary issue centres on joinder in that the first respondent's minor children ought to have been joined and that their mother is cited as an executor and not as guardian.

The applicants submit that the matter is purely civil and declaratory, not criminal, and therefore the Court has jurisdiction. The alleged non-joinder of the deceased's children is said to be not fatal, as the Court has discretion to order joinder where necessary, as held in *Wakatama & Ors* v *Madamombe SC 10/12*. The applicants submit that the interests of the

respondent's minor children are adequately represented by their mother who is cited as a respondent.

Regarding whether the matter is criminal, this is obviously not criminal matter as the deceased can no longer be prosecuted for his bigamous actions. It is a civil matter in which this court must decide on the implications on his will if any of the fact that he was legally married to someone else and yet left bequests to the illegal wife as a wife, That requires that the matter be heard on the merits. What the applicant is challenging is the use of the laws relating to testamentary disposition and Administration of Estate to give legal effect to an unregistered Customary Law Union which had been contracted in violation of Statute. The import of that is for the merits to be addressed

On the non-joinder of the deceased's minor children in these proceedings, it is well established that minors lack the legal capacity to litigate in their own names and must be properly represented either by a guardian ad litem or a natural guardian expressly cited in that capacity. The mere citation of the children's mother as executor under these proceedings does not suffice to place the minors before the court, as that role is fiduciary in nature and pertains to the administration of the estate rather than the protection of the children's personal interests. In accordance with Rule 32 (12)(b) of the High Court Rules, 2021, the court is empowered at any stage to order the joinder of any person whose presence is necessary for the effective and complete adjudication of the matters in dispute. The rule underscores that non-joinder is not fatal; rather, it is a defect which the court is obliged to cure to safeguard the interests of all parties, particularly minors whose rights are implicated. Whilst the appropriate course would ordinarily be to direct that the minor children be properly joined and represented, rather than dismissing the proceedings, in this instance I am of the view that the issue before me can be properly disposed of without affecting the rights of the children in any way. It will not be necessary to put the parties to expense or to delay these proceedings.

**Summary of the submissions on merit**

On the merits, the applicants contend that the impugned will is invalid because it seeks to give legal effect to a relationship that is void ab initio. They argue that the deceased purported to benefit a "second wife" in circumstances where a valid civil monogamous marriage already existed, thereby contravening statutory law and public policy. Reliance is placed on *Thulisani Nyamabi* v *Bongani Ncube HB 82/15* to support the proposition that such a relationship cannot generate legally cognisable rights.

The applicants argue that they meet the requirements for declaratory relief: They have a direct and substantial interest, as articulated in *Retrofit Pvt Ltd* v *PTC 1995 (2) ZLR 99 (S)*. The first applicant, as the surviving spouse in a valid civil marriage, has a legal interest in the proper administration of the estate and in protecting her marital and inheritance rights. The children of the civil marriage similarly have a direct interest as lawful beneficiaries, supported by *Estate Whitehouse* v *Whitehouse 1993 (2) ZLR 63 (S)*.

The applicants further submit that the will is contrary to public policy because it recognises and seeks to legitimise a union contracted in violation of marriage laws. Further, it creates succession rights based on an unlawful relationship. Lastly, it circumvents statutory prohibitions on bigamy and undermines the legal protection afforded to civil monogamous marriages.

They emphasise that the matter raises significant legal and practical issues, including marital status, inheritance rights, and compliance with statutory frameworks governing marriage, succession, and land rights. The estate includes substantial assets, and its distribution depends on the validity of the will.

The applicants assert that they possess existing, future, and contingent rights: The first applicant relies on her status as lawful spouse and her entitlement to estate benefits, including the matrimonial home. The children rely on their status as legitimate heirs and their rights to inherit and participate in estate administration.

They therefore argue that a declaratory order is necessary to determine the status of the first respondent; resolve the validity of the will; enable the Master to administer the estate lawfully; and to clarify whether a testator can circumvent prohibitions on bigamy through testamentary disposition.

At the hearing, their lawyer Mr Matapura, reiterated that the will gives effect to an illegality by recognising a second wife. He argued that civil remedies remain available notwithstanding the absence of criminal prosecution for bigamy, relying on *Lucy Ncube* v *Marble Dube HB132/14*, where a similar unlawful union was not recognised.

On the merits, Mr Kanengoni on behalf of the first respondent, emphasized that the applicant's' concerns do not centre on any violation of the Wills Act. He highlighted the fundamental principle in testate succession of freedom of testation, emphasising that however much one could disagree with his life style choices, he was no less free to dispose of his property as he wished. On the and issue of disposal of the deceased's farm he argued that the deceased had a 99-year lease and was entitled to make the bequests he made. He relied on

*Chombo* v *Chombo* SC 41/18, where party with a 99-year lease was allowed to subdivide his land. He also submitted that the court was at large to sever any offensive parts of the will as opposed to setting aside the entire will. On costs, his submitted that none ought to lie against the Respondent as she is a person simply given a benefit under a will and should not be punished. His prayer was for the application to be dismissed.

**Applicable Law and Factual Analysis**

The applicant's argument is premised on the invalidity of the deceased's second marriage. That the deceased's purported customary marriage to Vongai Leah against the backdrop of an existing civil marriage with Georgina, was not a legally valid marriage cannot be disputed. In particular the first applicant takes issue with the explicit definition of Vongai Leah as a wife in the will. While it may be correct that a person cannot validly contract a second marriage during the subsistence of a monogamous marriage, this fact alone does not invalidate acts performed by the deceased outside the sphere of matrimonial law. This is because of freedom of testation and the fact that a testator is not obliged to bequeath his estate only to legally recognized relatives or spouses. It is a well-established principle of succession law that a testator enjoys freedom of testation, that is, the liberty to dispose of his estate as he pleases, subject only to limited statutory and common law restrictions. He may validly benefit any person of his choosing, irrespective of the legal status of that person's relationship with him. Section of the Wills act captures this freedom of testation as follows:

> "1) Subject to this Act and any other enactment, any person who has capacity in terms of section *four* to make a will may in his will—
> (*a*) make provision for the transfer, disposal or disposition of the whole or any part of his estate; and
> (*b*) make provision for the custody or guardianship after his death of any of his minor children; and
> (*c*) make any other lawful provision, disposition or direction, whether in respect of his own or any other property or in respect of any other matter."

In *Chigwada* v *Chigwada & Ors* 2020 (2) ZLR 1353 (SC) at page 1372 the Supreme Court commented on freedom of testation as follows:

> "To deny a person married out of community of property the right to dispose of his or her property by will to whomsoever he or she chooses is to erode the foundation on which the doctrine of freedom of testation lies. The decisions of the High Court based on the proposition that a person married out of community of property may not dispose of his or her estate by will to whomsoever he or she chooses, being allegedly bound to leave the property to the surviving spouse, are inconsistent with the fundamental right in section 71(2) of the

> Constitution and section 5(1) of the Wills Act [Chapter 6:06]. Our law now recognises freedom of testation.
> It would be absurd to allow the spouse to dispose of his or her property during his or her lifetime but take away that power from him or her to dispose of it by will".

Freedom of testation therefore includes not only the right to give away one's property and to pass it on death but also to decide who to give away to. A spouse may even be excluded. Freedom of testation also includes the right to decide the form beneficiaries will get that property.

The will in question constitutes a unilateral juristic act. Its validity must be assessed independently of the validity of any marriage involving the deceased. It cannot be said that the deceased used the law for the purpose of giving effect to the illegal union. There are many reasons why a testator may choose to include and heir or for that matter to exclude one. In this instance the testator simply used the law to ensure that those whom he wished to benefit from his estate did so. Even if the respondent was not a lawful spouse, she remained a person capable of benefiting under a will. The deceased was entitled, in the exercise of his freedom of testation, to bequeath his estate or any portion thereof to her even without the description of wife.

For the testator whether the union was illegal and of no consequence in the eyes of the law, for him the emotional ties he obviously felt towards Vongai Leah and their offspring were fundamental to his desire to ensure they were taken care of after his death and hence the will. A testator generally expects their directions to be followed. By including Leah in the will, the message was not to validate their union but to simply ensure that she was taken care of post mortem. The message he intended to send may not have been as has turned out to be due to the hurt his emotional ties to Vongai Leah may have caused during his life time.

Further, there is a distinction between validity of a marriage and validity of a will. The validity of a will is determined by compliance with the requirements governing testamentary dispositions, including: testamentary capacity; absence of undue influence; and compliance with formalities of execution. The legal status of a beneficiary, including whether or not such beneficiary is a lawful spouse, does not, in itself, affect the validity of the will. It is not alleged that the deceased lacked testamentary capacity; or that the will was procured through undue influence, fraud, or coercion; or that the formal requirements for a valid will were not complied with. In the absence of any such allegations and evidence, there is no legal basis upon which the will itself can be impugned.

As for her appointment as an executor, this is similarly governed by legal capacity and suitability. There is no requirement in law that an executor in one's will must be a lawful

spouse of the deceased. Any competent person may be appointed. As was highlighted in *Wakapila*:

> "It is only where the nominated person has predeceased the testator, declined the appointment or had the appointment challenged that the Master is precluded from issuing him with letters of administration."Insofar as the applicant seeks declaratory relief—that the will is invalid by reason of the deceased's unlawful marriage—the requirements for a declarator are not met in this instance. A court will grant a declaratory order only where there is an existing, concrete legal right or obligation that requires clarification. Here, the applicant seeks, in substance, to have the court declare the will invalid on grounds extraneous to the legal requirements for testamentary validity. The invalidity of the marriage does not create a legal uncertainty regarding the will itself, nor does it give rise to a justiciable controversy affecting an existing legal right in relation to the will's validity. The issue raised is therefore not one that properly falls within the scope of declaratory relief, as it does not concern the determination of a legal right, but rather an attempt to indirectly impugn a valid juristic act on irrelevant grounds."

As regards the will being invalid for subdividing leasehold land, whether a person can subdivide land they hold under a 99-year lease depends on the terms of the lease. The relevant Ministry will need to be involved as to whether the bequests made by the now deceased exceed his rights as a leaseholder given that a 99-year lease typically grants the lessee (the person holding the lease) the right to use the land for the duration of the lease with limited real rights. It does not confer full ownership but entitlements may flow from it as explained in *Chombo* v *Chombo*. In this instance if the rights are exceeded that part of the will can simply be severed.

**Conclusion**

The invalidity of the deceased's purported second marriage does not, without more, render his will null and void. The respondent's lack of status as a lawful spouse does not disqualify her from being a beneficiary or executrix under the will. Moreover, the applicant has failed to satisfy the requirements for declaratory relief, as no justiciable legal uncertainty or enforceable right arises from the invalid marriage in relation to the validity of the will.

Accordingly, it is ordered that:

1. The application for a declaratory order declaring the will null and void be and is hereby dismissed.
2. The last will and testament of the late Claudius Makova is declared valid and enforceable.
3. The appointment of the respondent as executrix stands.

4. Each party shall bear own costs.

**TSANGA J:……**

*Mafongoya and Matapura*, Applicant's Legal Practitioners
*Nyika, Kanengoni and Partners*, 1st Respondent's Legal Practitioners